

Easement

Version 3.5 released on 7/1/25

PWO121946



CITY COUNCIL USE ONLY

Date Received: _____
Committee Date: _____
1st Agenda Date: _____

Tracking #: _____
Committee: _____
Hearing Date: _____
2nd Agenda Date: _____

CITY CLERK USE ONLY

☐ Scanned
☐ Posted

Date: 05.13.2026
Item #: 2605, 01165

All department items requiring Council approval must be submitted through the Mayor's Office.

Primary Details

Board Approval

Other Board Name

City Council Approval

☒ Yes ☐ No

Department
Public Works

Contact Name
Scott Byrd *sub 4-21-26*

Email
sbyrd@cityoftulsa.org

Phone
918-596-7262

Easement Type
Sanitary Sewer

Owner-Grantor
OLT Sparks Development, Inc.

Bid/Project Number
ES 2022-09

Project Title
Spunky Creek Interceptor Main Stem South Phase 3

Council District
6

Section
24

Township
19

Range
14

Addition
UNPLATTED

Lot

Block

Address
3380 S 193 E AVE

Parcel Number
5A

Additional Information/Tracking Number

Budget

Contract Types

- ☐ No Payments Involved
☐ Revenue Contracts
☒ Expense Contracts

Funding Source(s)

2531S00031.SewerLines.Sewer.7500N.75003308.541101: \$28.00

TOTAL: \$28.00

Approvals

Department: _____

Legal: _____

Board: _____

Mayor: _____

Other: _____

Date: 04.23.26

Date: 05/06/2026

Date: MAY 13 2026

Date: _____

Date: _____

Policy Statement

Background Information

Project ES 2022-09 - Spunky Creek Interceptor Main Stem South Phase 3, Parcel 5A

The City of Tulsa is planning a sanitary sewer project in the vicinity of 31st St S and 193rd E Ave. The attached Sanitary Sewer Easement is required for the project. This easement is being donated by OLT Sparks Development, Inc.

Payment request is attached to the Tulsa County Clerk for the filing fee (\$28.00).

PDZ: *PDZ* 04.23.26 MSL *MSL* 4/23/26

bh

Summation of the Requested Action

Mayoral approval and City Council acceptance.

Other Pertinent Details

Processing Information for City Clerk's Office

Post Execution Processing

- ☐ Mail vendor copy (add'l signature copies attached)
☒ Must be filed with other governmental entity
☐ Add'l governmental entity approval(s) required

Additional Routing, Processing or Contact Details

Courtney Jones, 918-596-9549

2020-PPZ-201

SANITARY SEWER EASEMENT

KNOW ALL MEN BY THESE PRESENTS:

That the undersigned, **OLT Sparks Development, Inc.**, an Oklahoma corporation, (Grantor), the owner of the legal and equitable title to the following real estate situated in Tulsa County, State of Oklahoma, for and in consideration of the sum of One Dollar (\$1.00) from the **City of Tulsa**, Oklahoma, a municipal corporation (City), and other good and valuable considerations, receipt of which is hereby acknowledged, does hereby grant and convey unto the said City of Tulsa, Oklahoma, a permanent easement through, over, under and across the following described property, situated in said County, to-wit:

See Exhibit "A"

for the purpose of permitting the City to construct a **sanitary sewer** thereon, through, over, under and across said property, together with all necessary and convenient appurtenances thereto; and to use and maintain the same, and of affording the City, its officers, agents, employees, and/or all persons under contract with it, the right to enter upon said premises and strip of land for the purpose of surveying, excavating for, constructing, operating, repairing, and maintaining of such construction.

The City is hereby given and granted the exclusive possession of said above premises for the purposes aforesaid and Grantor, for itself and administrators, successors and assigns, covenants and agrees that no building, structure, fence, wall or other above ground obstruction will be placed, erected, installed or permitted upon the above described land; and further covenants and agrees that in the event the terms of this paragraph are violated by the Grantor, or any person in privity with it, such violation will be promptly corrected and eliminated immediately upon receipt of notice from City, or City shall have the right to remove or otherwise eliminate such violation, and Grantor, its administrators, successors and assigns, shall promptly pay the actual cost thereof.

TO HAVE AND TO HOLD Such easement and right-of-way unto the City, its successors or assigns, forever.

Dated this 14th day of April, 2026.

OLT Sparks Development, Inc., an Oklahoma corporation,

By: 1 [Signature]

Name: Pete Kourtis, President

STATE OF OKLAHOMA)
) ss.
COUNTY OF TULSA)

This instrument was acknowledged before me on this 7th day of April, 2026,
by **Pete Kourtis, President of OLT Sparks Development, Inc.**, an Oklahoma corporation.

Given under my hand and seal of office the day and year last above written.

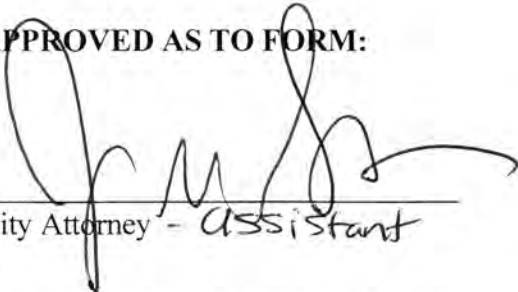
[Signature]
Notary Public

My commission expires:

September 23, 2028



APPROVED AS TO FORM:



City Attorney - Assistant

APPROVED AS TO SUBSTANCE:



Director

ACCEPTED BY CITY COUNCIL:

CITY OF TULSA, OKLAHOMA,
a municipal corporation

Date: _____

BY: _____

Name: Karen Gilbert
Title: Council Chair

STATE OF OKLAHOMA)
) ss.
COUNTY OF TULSA)

Before me, a Notary Public in and for said County and State, on the ____ day of _____, 2026, personally appeared **Karen Gilbert**, to me known to be the identical person who approved the within and foregoing instrument as **Chair** of the City Council of the City of Tulsa, Oklahoma, and acknowledged to me that he approved the within and foregoing instrument as his free and voluntary act and deed and as the free and voluntary act and deed of the City of Tulsa, Oklahoma, for the uses and purposes therein set forth.

Notary Public

My commission expires:

APPROVED BY MAYOR:

CITY OF TULSA, OKLAHOMA,
a municipal corporation

Date: _____

BY: _____

Name: Monroe Nichols IV

Title: Mayor

ATTEST:

City Clerk

STATE OF OKLAHOMA)
) ss.
COUNTY OF TULSA)

Before me, a Notary Public in and for said County and State, on the ____ day of _____, 2026, personally appeared **Monroe Nichols IV**, to me known to be the identical person who approved the within and foregoing instrument as **Mayor** of the City of Tulsa, Oklahoma, and acknowledged to me that he approved the within and foregoing instrument as his free and voluntary act and deed and as the free and voluntary act and deed of the City of Tulsa, Oklahoma, for the uses and purposes therein set forth.

Notary Public

My commission expires:

PARCEL NO. _____ 5A

COUNTY _____ TULSA

LEGAL DESCRIPTIONOLT SPARKS DEVELOPMENT
PERMANENT EASEMENT

A TRACT OF LAND LOCATED IN THE NORTHEAST QUARTER (NE/4) OF SECTION TWENTY-FOUR (24), TOWNSHIP NINETEEN (19) NORTH, RANGE FOURTEEN (14) EAST OF THE INDIAN BASE AND MERIDIAN, TULSA COUNTY, STATE OF OKLAHOMA, ACCORDING TO THE UNITED STATES GOVERNMENT SURVEY THEREOF, AND BEING MORE PARTICULARLY DESCRIBED AS FOLLOWS:

COMMENCING AT THE SOUTHEAST CORNER OF SAID NE/4; THENCE SOUTH 88°33'43" WEST AND ALONG THE SOUTH LINE OF SAID NE/4, FOR A DISTANCE OF 65.00 FEET TO A POINT ON THE WEST LINE OF AN EXISTING WATER EASEMENT, RECORDED AS BOOK 4969, PAGE 47 IN THE OFFICE OF THE TULSA COUNTY CLERK, SAME BEING THE **POINT OF BEGINNING**; THENCE CONTINUING SOUTH 88°33'43" WEST AND ALONG THE SOUTH LINE OF SAID NE/4, FOR A DISTANCE OF 382.71 FEET; THENCE NORTH 00°31'57" WEST, FOR A DISTANCE OF 299.52 FEET, THENCE NORTH 00°20'59" WEST, FOR A DISTANCE OF 437.59 FEET; THENCE NORTH 46°47'39" WEST, FOR A DISTANCE OF 60.67 FEET; THENCE NORTH 00°05'23" WEST, FOR A DISTANCE OF 544.39 FEET; THENCE NORTH 88°41'55" EAST, FOR A DISTANCE OF 403.33 FEET TO A POINT ON THE WEST LINE OF SAID WATER EASEMENT; THENCE SOUTH 01°17'40" EAST AND ALONG SAID WEST LINE, SAME BEING PARALLEL WITH THE EAST LINE OF SAID NE/4, FOR A DISTANCE OF 1322.91 FEET TO THE **POINT OF BEGINNING**.

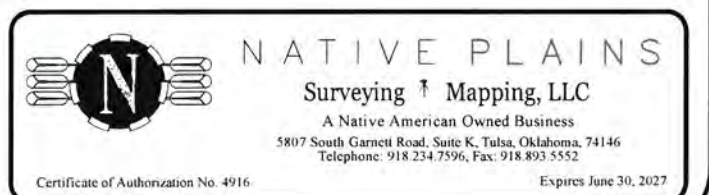
CONTAINING 517,328.07 SQUARE FEET OR 11.88 ACRES, MORE OR LESS.

BASIS OF BEARINGS: BASED ON OKLAHOMA STATE PLANE COORDINATE SYSTEM, NORTH ZONE (3501) NAD 83 (1993).

REAL PROPERTY CERTIFICATION:

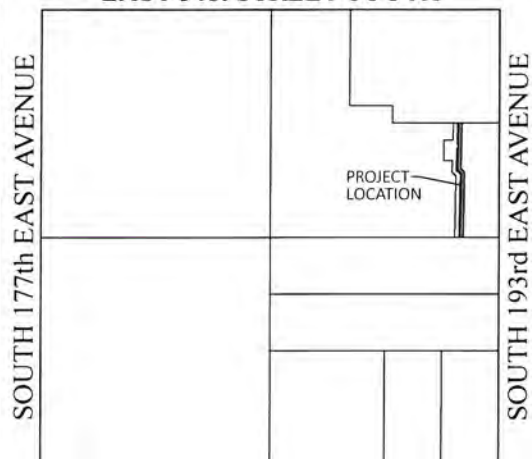
I, NATHANIEL J. REED, CERTIFY THAT THE ATTACHED LEGAL DESCRIPTION CLOSES IN ACCORD WITH EXISTING RECORDS, IS A TRUE REPRESENTATION OF THE REAL PROPERTY AS DESCRIBED, AND MEETS THE MINIMUM TECHNICAL STANDARDS FOR LAND SURVEYING OF THE STATE OF OKLAHOMA.

NATHANIEL J. REED
DATE OF SIGNATURE _____
DATE OF LAST SITE VISIT _____



EAST 31st STREET SOUTH

PARCEL NO. 5A
COUNTY TULSA

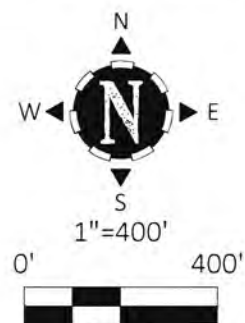
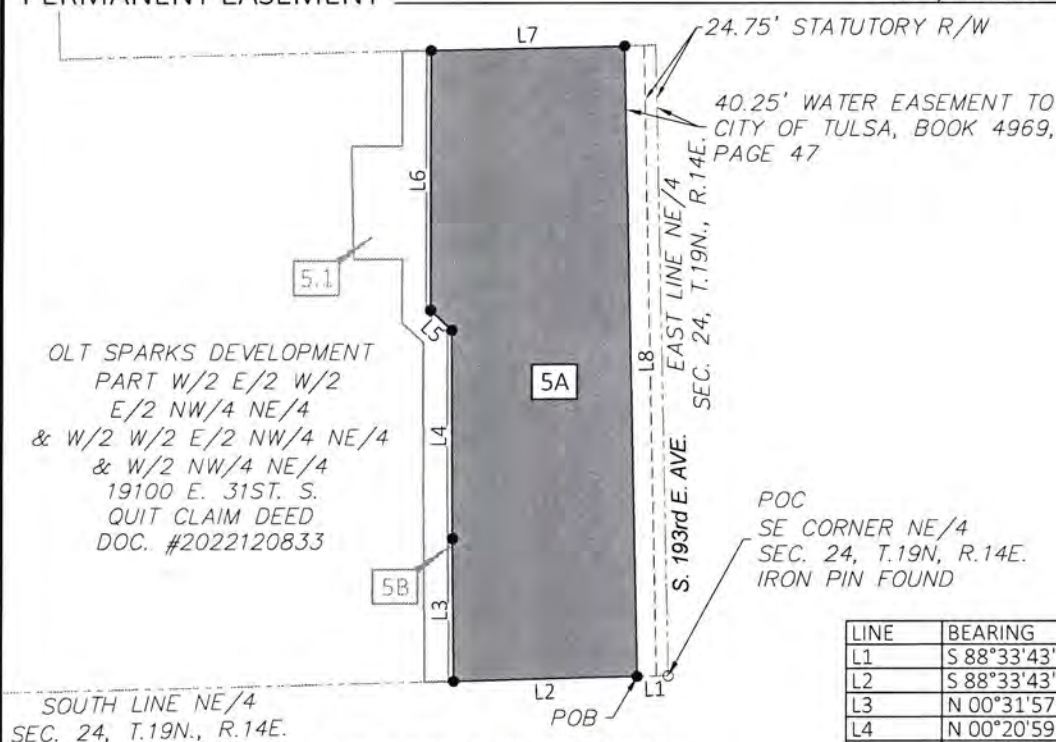


LEGAL DESCRIPTION: A TRACT OF LAND LOCATED
IN THE NE/4, SECTION 24, TOWNSHIP 19 NORTH,
RANGE 14 EAST, TULSA COUNTY, STATE OF
OKLAHOMA

SEC 24 T 19 N R 14 E

EAST 41st STREET SOUTH
TEMPORARY EASEMENT _____
PERMANENT EASEMENT _____

0.00	SF	0.00	ACRES
517,328.07	SF	11.88	ACRES



I, NATHANIEL J. REED, OF THE STATE OF OKLAHOMA,
AND A PROFESSIONAL SURVEYOR, DO HEREBY CERTIFY
THAT THE ABOVE SHOWN PLAT OF SURVEY IS TRUE
AND CORRECT TO THE BEST OF MY KNOWLEDGE AND
MEETS THE MINIMUM TECHNICAL STANDARDS FOR
LAND SURVEYING OF THE STATE OF OKLAHOMA.

LINE	BEARING	DISTANCE
L1	S 88°33'43" W	65.00'
L2	S 88°33'43" W	382.71'
L3	N 00°31'57" W	299.52'
L4	N 00°20'59" W	437.59'
L5	N 46°47'39" W	60.67'
L6	N 00°05'23" W	544.39'
L7	N 88°41'55" E	403.33'
L8	S 01°17'40" E	1322.91'

LEGEND

POB POINT OF BEGINNING
POC POINT OF COMMENCEMENT
● 3/8" IRON PIN SET w/CAP (#4916)
○ IRON PIN FOUND

BASIS OF BEARINGS: BASED ON OKLAHOMA STATE PLANE
COORDINATE SYSTEM, NORTH ZONE (3501) NAD 83 (1993).

NATHANIEL J. REED
DATE OF SIGNATURE
DATE OF LAST SITE

EXHIBIT "A"

MUNIS
INVOICE COVER SHEET

Vendor Name and Address
Tulsa County Clerk

Department #: 32- Public
Works

Date: 4/17/2026

Special Handling

☐ Wire Transfer

☒ Will Pick up

Email: PWAdmin@cityoftulsa.org

ACCOUNTS PAYABLE USE

Allocation code: _____

MUNIS VENDOR NUMBER

1222-6

MUNIS CONTRACT #

PROJECT STRING (if applicable)

ORG

OBJECT

AMOUNT

2531S00031.SewerLines.Sewer.7500N

75003308

541101

\$28.00

\$0.00

\$0.00

INVOICE NUMBER/DESCRIPTION

TOTAL

\$28.00

Filing Fee

Project ES 2022-09

Parcel 5A

REMARKS

Purchase
Authority

☐

Special Approval

☒

Exception

☐

Contract

Invoice

☐

Original Attached

☐

Prepay (Attach form)

☐

Refund

Affidavit

☐

Affidavit attached (form TUL-373)
For invoices over \$25,000

☒

Not applicable

Prepared by: Bruce Hutton

Munis Workflow approval

Date: 4/17/2026

Eric C. De... 4/29/26

MUNIS for ES 2022-09 Parcel 5A **As of 4/17/2026**

▲ Project *	2531S00031	Spunky Creek MnStm Cont 1&2
▲ Phase *	SewerLines	Sewer lines
▲ Task *	Sewer	Sewer projects
Sub-Task *	7600N	TMUA Sewer Capital Projects

Name * Spunky Creek MnStm Cont 1&2

Short Name * SCMainStem

Status Active

Projected date range 07-01-2024 to 06-30-2025

Actual date range to

Project String Balances

GL Account(s)



Project Year 2026

Original Budget	.00
Transfers - In	322,829.99
Transfers - Out	.00
Revised Budget	322,829.99
Actual (Memo)	.00
Encumbrances	.00
SOY Encumbrances	.00
Requisitions	.00
Inception to SOY	.00
Available	322,829.99
Percent Used	0.00

Budget GL account

Fund

SubFund

Org

Object

75003308

541101